
Journal

2010 PLD 612

Court

SUPREME COURT

Date

2010-02-09

Appeal No.

CRIMINAL APPEALS NOS. 56 OF 1999 AND 288 OF 2004

Judge

SARDAR MUHAMMAD RAZA KHAN,MIAN SHAKIRULLAH JAN AND TASSADUQ HUSSAIN
JILLANI

Parties

MIR SHAKEELUR REHMAN AND OTHERS (APPELLANTS) VERSUS YAHYA BAKHTIAR AND
OTHERS RESPONDENTS

Lawyers

ASADULLAH SIDDIQUI, ADVOCATE SUPREME COURT FOR APPELLANTS (IN CRIMINAL
APPEAL NO.56 OF 1999).M.W.N. KOHLI, ADVOCATE SUPREME COURT FOR APPELLANTS
(IN CRIMINAL APPEAL NO.288 OF 2004).RIAZ AHMAD, ADVOCATE-ON-RECORD FOR
PRIVATE RESPONDENTS.RANA ABDUL GHAFOR, ADVOCATE SUPREME COURT ON
BEHALF OF GOVERNMENT OF BALOCHISTAN FOR THE STATE.

Statutes

MALICIOUS PROSECUTION PENAL CODE (XLV OF 1860) - SS.500, 501 AND 502

Judgment

TASSADUQ HUSSAIN JILLANI, This judgment shall dispose of Criminal Appeal No.56 of 1999 and Criminal Appeal No.288 of 2004 as respondents are the same and the issue raised have nexus.

Criminal Appeal No.56 of 1999

2. Facts giving rise to the Criminal Appeal No.56 of 1999 are that respondent late Mr. Yahya Bakhtiar filed a criminal complaint under section 200, Cr.P.C. read with sections 500, 501 and 502, P.P.C. on 27th of November, 1985 against the appellant-respondent alleging that by publishing an Article in Daily "Jang" Quetta whereby they reproduced an interview given by Sheikh Shaukat Ali (a senior lawyer and an ex- Judge of the High Court) commenting on the role of the complainant in the trial of late Mr. Zulfikar Ali Bhutto had caused defamation and loss of his reputation. The trial commenced, charge was framed, statement of the complainant was recorded and on the date fixed for his cross- examination i.e. 31-5-1994, he did not appear and the Magistrate dispensed with his appearance. On 12-2-1996, the complainant again did not appear and the learned trial Court dismissed the complaint holding that the complainant was not interested in the prosecution of the complaint. The complaint was however restored on 22-5-1996. But again on 25-7-1996, the complainant did not appear and the complaint was dismissed once again and the appellants were acquitted. This order was challenged by the complainant before the learned High Court of Balochistan at Quetta which was allowed vide impugned judgment dated 8-9-2007 and the case was remitted for trial.

3. Learned counsel for the appellants Mr. Asadullah Siddiqui, Advocate Supreme Court in support of this appeal submitted that the complaint was dismissed and appellants were acquitted on 25-7-1996 by which date the offence of defamation had been made non-cognizable by virtue of Criminal Law (Amendment) Act, 1986 (Act IV of 1986) and the observation of the learned High Court that the unamended law as existed at the time of lodging of complaint would be applicable is not tenable. He added that law relating to trial of an offence regulating the procedure as also the manner of recording evidence is a matter of procedure and it is by now a settled principle of law that any amendment made in the procedural law is retrospective in effect. He lastly submitted that the complaint was filed as far back as 1985 and the appellants suffered the rigors of a protracted trial and were acquitted after 12 years pun

on 25-7-1996 and now more than 25 years have elapsed since the commencement of trial, it would be a travesty of justice to ask the appellants to face the trial once again particularly when even the complainant has died.

4. Learned counsel for the respondents defended the impugned judgment passed by the learned High Court of Balochistan by submitting that the learned trial Court had dismissed complainant's complaint not only in default but also by expression of opinion on merit which was not tenable and the learned High Court rightly reversed the order. He added that the learned trial Court fell in error in invoking section 247 of the Cr.P.C. to dismiss the complaint on account of non-appearance of the complainant without realizing that when the complaint was filed, the offence under section 500, P.P.C. was cognizable and non-compoundable. Although the afore-referred provision of P.P.C. was amended by virtue of Ordinance LXVIII of 1979 i.e. Criminal Law (Amendment) Ordinance, 1979, the proceedings would still be governed under the law which prevailed at the time of commencement of trial. He lastly submitted that the complainant besides being a former Attorney-General was a highly respected member of the Bar and he and his family made rich contribution in Pakistan Movement. With this stature, the publication of the

interview by the appellant-accused in the daily newspaper "Jang" had the effect of defaming him in public view which act fell within the mischief of the law under which they were charged.

Crl. Appeal No, 288 of 2004

5. In Criminal Appeal No.288 of 2004 the facts briefly stated are that the respondent/predecessor-in-interest of respondents No.1 and 2 namely Mr. Yahya Bukhtiar filed a complaint before the Judicial Magistrate on 8-12-1999 (under sections 500, 501, 502, P.P.C.) alleging that publication of an article authored by Mr. Hassan Nisar titled 'Nawaz Sharif Kay Yahya Bakhtiar' was malicious and had the effect of maligning and defaming him in public view. It was further averred that the article carried an insinuation that the complainant was responsible for the death sentence awarded to late Mr. Zulfikar Ali Bhutto by the Lahore High Court as according to the author-accused, the case was not properly conducted. During the pendency of complaint Mr. Yahya Bakhtiar died on 27-6-2003. The appellant-accused moved an application for dismissal of the complaint in view of the said death. However, the application was dismissed by the learned trial Court 19-8-2003 with the observation as under: -

"I am of the opinion that the death of the complainant does not ipso facto terminate the prosecution. So the complainant side is given an opportunity to arrange another complainant till the next date of hearing. Remaining respondents AFE given exemption on the application. "

6. On the direction of the Court and in terms of the application made respondent's daughters namely Mst. Sara Bakhtiar and Mst. Zeba Bakhtiar, they were impleaded as parties/complainants. The aforementioned order of the trial Court was challenged in revision before the District and Sessions Judge which was partly allowed, the impugned order dated 19-8-2003 was set aside and the matter was remitted to the trial Court for "adjudication in accordance with law." This order of the learned Additional Sessions Judge was challenged both by the appellants (in-Quashment Petition No.27 of 2004) and by the respondents-daughters of Yahya Bakhtiar (in C.P. No.327 of 2004) which was disposed of by a Division Bench of the learned High Court of Balochistan vide impugned judgment dated 21-10-2004. The judgment of the learned District and Sessions Judge dated 22-5-2004 was set side and that of the learned trial Court dated 19-8-2003 was restored.

7. Learned counsel for the appellants submitted that defamation is a personal injury to the aggrieved person and if the complainant dies, the criminal action cannot sustain. He added that the legal heirs of the complainant had no right to be impleaded as a party in a criminal case and that too relating to alleged defamation. In support of the submissions made, he relied on Ali Muhammad Mirza v. Mst. Sardaran PLD 2004 SC 185.

8. Learned counsel for the respondents, on the other hand, defended the impugned judgment by submitting that the heirs of the complainant had a right to be impleaded as a party. Relying on Abdus Salam v. Kh. Mehdi Anwar PLD (sic) W.P. Lahore 783, the learned counsel contended that in offences which are compoundable and non-cognizable in the event of absence of the complainant, the Magistrate had a discretion to proceed with the complaint and in the instant case, the learned trial Court had validly exercised the direction by not only refusing to dismiss the complaint but also by allowing daughters/legal heirs of the complainant to be impleaded and transposed as complainants.

9. Having heard learned counsel for the parties and having given anxious anxious consideration to the submissions made (in both the appeals), following issues crop up for consideration:- (i) Whether the learned High Court fell in error in applying the law as it existed at the time of filing the complaint i.e. 27-11-1985 notwithstanding the amendment made in law by virtue of Criminal

Law (Amendment) Act, 1986 (Act IV of 1986)?

(ii) Whether after the death of the complainant Yahya Bakhtiar on 27-6-2003, could a complaint proceed?

(iii) Whether the learned trial Magistrate had validly allowed daughters/legal heirs of the complainant to be impleaded/ transposed as complainants notwithstanding the fact that defamation was a personal loss?

10. Before we dilate on the afore-referred issues, it would be in order to refer to some of the legal provisions construction of which is moot point. Section 247, Cr.P.C. stipulated the manner in which the Hial Magistrate has to proceed in the event of non-appearance of the complainant. It reads as follows

“247. Non-appearance of complainant.-If the summons has been issued on complaint, and upon the day appointed for the appearance of the accused, or any day subsequent thereto which the hearing may be adjourned, the complainant does not appear, the Magistrate shall, notwithstanding anything hereinbefore contained, acquit the accused unless for some reason he thinks proper to adjourn the hearing of the case to some other day:

Provided that, where the complainant is a public servant and his personal attendance is not required, the Magistrate may dispense with his attendance, and proceed with the case:

Provided further that nothing in this section shall apply where the offence of which the accused is charged is either cognizable or none- compoundable.”

11. When the complaint was filed by late Yahya Bakhtiar under sections 499 and 500, P.P.C. the offences were cognizable and non- compoundable. However, by virtue of Criminal Law (Amendment) Act, 1986 (Act IV of 1986), those provisions were made non-cognizable and compoundable. In Criminal Appeal No.56 of 1999, the learned trial Magistrate dismissed the complaint on 25-7-1996 on account of non- appearance of the complainant and observed as follows:~

“No justification has been explained by the counsel or complainant for his non-appearance. The complainant has no interest in the case. He only wants to drag the accused in the Court. Therefore, the complaint is dismissed consequently the accused are acquitted. ”

12. In reversing the afore-referred order of the trial Magistrate, vide the impugned judgment, a Division Bench of the learned High Court was of the view that section 500, P.P.C. under which the complaint was filed was not only cognizable but also non-compoundable. Therefore, the learned trial Court could not have dismissed the complaint on account of the second proviso to section 247, Cr.P.C. reproduced above.

13. Much stress was laid by learned counsel for the appellants on the point that the amendment brought about by Act IV of 1986 making the offences in question as non-cognizable and compoundable had to be applied retrospectively and the pending complaint (subject-matter of this appeal) had rightly been dismissed for non-prosecution. The argument however, does not take account the import of section 6 of the General Clauses Act, 1897 which, inter alia, stipulates that unless it is otherwise provided in the amending or repealing law, the pending proceedings shall be dealt with according to the unamended law. Admittedly, the amending law did not stipulate its retrospective application. In *Idrees Ahmad and others v, Hafiz Fida Ahmad Khan* PLD 1985 SC 376, this Court while construing the afore-referred provisions of the General Clauses

Act held as follows:

“Thus by the force of clauses (c) and (e) of section 6 of the General Clauses Act, unless a different intention appears from the repealing enactment, the repeal ipso facto will not affect any right, privilege, obligation or liability acquired, accrued or incurred under any enactment so repealed; affect any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture, or punishment as aforesaid; and any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed as if the repealing enactment had not been passed.”

14. In setting aside the order of the learned Magistrate, the learned High Court has correctly appreciated the law applicable. A similar view was taken with regard to application of section 247, Cr.P.C. in non-cognizable cases by this Court and the judgment of the High Court was upheld.

Muhammad Nawaz Kasuri v. Mian Abdul Hameed 1993 SCMR 1902. In applying the law as it stood at the time of filing the complaint, the judgment of the learned High Court is unexceptionable and issue No.1 is decided accordingly.

15. This brings us to issues No.2 and 3 i.e. whether after the death of the complainant Yahya Bakhtiar on 27-6-2003, could a complaint proceed; and whether the learned trial Magistrate had validly allowed daughter/legal heirs of the complainant to be impleaded/transposed as complainants notwithstanding the fact that defamation was a personal loss?

16. Relying on a Latin maxim *actio personalis moritur cum persona*, the learned counsel for the appellant contended that alleged defamation was a personal wrong and it extinguishes with the death of the complainant. The learned counsel in support of his submissions had, inter alia, referred to section 306 of the Succession Act in particular to canvass that action would not survive complainant's death.

17. The law of libel and defamation is based on the principle that every person is entitled to his good name and esteem in which he is perceived by others; that he has a right to claim that his reputation shall not be sullied by defamatory statement to other without any justification valid in law. A person defamed has concurrent remedies-he may sue in a civil action and prosecute for the criminal offence concurrently. However, the two remedies have distinct implications. The Halsbury's Laws of England (Volume 28: Libel and Slander, Page 8 Para 14) explains these distinctions as follows:

“To maintain a civil action there must have been publication to a third person, but to support a criminal prosecution, publication to the defamed person alone will suffice. No civil action can be brought for a libel on a dead person. However, a criminal prosecution may be brought for a libel on a dead person if the libel was intended or, possibly, tended to injure the living and to incite a breach of the peace. No civil action can be brought for defamation of a group, class or race, but it has been said that a criminal prosecution may be brought if the libel was likely to cause a breach of the peace.

Truth is a complete defence to a civil action for libel but was not a defence at common law to a criminal prosecution. However, by statute truth is a defence to a criminal prosecution if publication was for the public benefit.

The doctrine of vicarious liability applies equally at common law to the publication of libels, whether they are the subject of civil actions or criminal proceedings, but the common law rule

has been relaxed by statute in relation to prosecutions for libel.

Alterations to the law of libel and slander effected by the Defamation Act 1952 do not affect the law relating to criminal libel. Thus, the broadcasting of a defamatory statement will not be a libel for the purposes of the criminal law, whereas defamatory words spoken in the course of a performance of a play must be treated as publication in a permanent form for the purpose of the law of criminal libel. ”

18. In the domain of civil law, the person wronged can file a suit for damages for malicious prosecution. It is a personal action and dies with the death of either of the parties. This was so held in:-

(i) Maniramlala Baliramlala v. Mt.Chattibai AIR 1937 Nagpur 216.

(ii) Mahant Salig Ram v. Charan Dass and another AIR 1939 Lahore 492.

(iii) Mst. Nasri Begum v. Virgil L. Moore, Consular for Administration Embassy of United States of America 1989 CLC 511.

(iv) Govt, of Punjab through Secretary Ministry of Agriculture v. Mst. Kamina 1990 CLC 404.

(v) Mercantile Cooperative Bank Ltd. v. Messrs Habib and Co. and others PLD 1967 Karachi 755.

(vi) M. Veerappa v. Evelyn Sequeria 1989 MLD 3225.

19. In Retanlal Bhannalal Mahajan v. Baboolal Hajarilal Jain (AIR 1960 Madhya Pradesh 200), the Court referred to section 306 of the Succession Act held that “personal injuries” under the afore-referred provision of the Act includes physical as well as mental injuries and a claim for compensation for loss of reputation or mental agony does not survive after the death of the party injured. However, the position would be different where suit for defamation has culminated in a judgment and decree in favour of the plaintiff. The decree would survive death of the decree-holder because the cause of action merges into the said decree which is part of his estate. His legal representatives have a right to defend the decree and are therefore entitled to be substituted.

20. Libel or defamation in criminal law, on the other hand, besides being personal injury is an offence against society as it may have potential of disturbing public peace. It would survive the death of the complainant if the imputation not only harms the reputation of the said person but is also intended to be hurtful to his family members or the force or institution of which the deceased was member. In Halsbury’s Laws of England, it has been noted that, “criminal proceedings may be instituted in respect of a libel on a dead person published with the intention, or, possibly, with a tendency, to injure the reputation of his surviving relations so that they may be excited to revenge and to a breach of the peace.”

21. The provisions qua defamation in the Pakistan Penal Code are the same as in the Indian Penal Code. As per Mehrotra’s Law of Defamation (3rd Edition), criminal proceedings in a case of libel published with regard to a dead person are maintainable if imputation is intended or injures the reputation of his survivors. In endorsing Halsbury’s Law of England, on this point it commented as follows:-

“Common law principle as to locus in respect of original prosecution for defamation of a dead

person appears to be the same in India. Explanation 1 to Sec. 499, I.P.C. envisages that it would be defamation if the imputation not only harms the reputation of the person concerned, if living, but also be "intended to be hurtful to the feeling of his family or other near relatives. The provisions of Sec. 499 of the Indian Penal Code, are to be read along with Expl. 1 since the person defamed is dead. The two parts of the provisions contained in Expl 1 are to be read conjunctively and not in disjunction. The imputation alleged must not only harm the reputation of the person, if living, but also be "intended to be hurtful to the feelings of his family and or other near relatives" in order to constitute the offence of defamation. It will appear from this that though generally the person defamed is the person aggrieved, yet in the case of a deceased person, an exception is made which allows the relations to complain when the imputation harms the reputation of the deceased and also at the same time hurts the feelings of living family members and near relatives. The explanation widens the scope of main section, which is permitted interpretation of statutes and, therefore, must be given effect to. In short, an act done with malevolent purpose, to vilify the money of the deceased with an intention to injure and hurt the feelings of the deceased's posterity is also defamation." (Emphasis is supplied)

22. Criminal proceedings in a case of defamation may also survive, if the imputation is against the complainant in his public capacity and against the institution of which he is member or employee. In *U Tin Maung and another v. the King* ((28) AIR 1941 Rangoon 202), one of the issues mooted was whether in a complaint of defamation filed by a police officer against the editor and publisher of a vernacular paper called "New Burma" would survive complainant's death. The Court having considered a plethora of precedent case law came to the conclusion as follows:-- "While a crime is often also an injury to a private person who has a remedy in a civil action, it is as an act or default contrary to the order, peace and well being of society that a crime is punishable by the State. The learned Judge might perhaps here have quoted a well-known decision, (1884) 12 Q B D 320 at p. 322, where (1791) 4 T R 126 is cited and it is further said that the whole criminality of libels on private persons, as , distinguished from the civil liability of those who publish them is in their tendency to disturb the public peace. In the present case the defamation alleged is against the complainant in his public capacity, and also, it may be added, against the police force in general. The Magistrate therefore could only have exercised the discretion which lay in him in the way he did by not discharging the accused but continuing with the trial."

23. The case in hand does not fall in the category of cases where the complaint would survive the complainant. A bare reading of the libel published which subject matter of this case would show that it was directed against the person of the complainant alone. It could be totally wrong and scandalous. But the fact remains that it was person specific and transaction specific. In the complaint filed and the statement made by the complainant before the trial Court, there is no allegation that the libel had in any manner injured the reputation of his family or relatives. This is evident from Para-24 of the complaint which reads as follows:-

"That with all this knowledge, experience and background the accused/respondents 1 to 5 have intentionally, knowingly and maliciously made false imputations and institutions with regard to the moral character, integrity, ability of the complainant with a view to malign and defame him and harm his reputation as on advocate, as a prominent member and office-holder of a political party and as a respectable citizen of Pakistan."

24. Even in the application filed by respondent's daughters (of the complainant) after latter's death for substitution of their name, there is no allegation that the libel published was hurtful to them or their family. The said application reads as under:-

"The applicants respectfully submit as under:-

(1) That the above noted case is pending before this Honourable Court and coming up for hearing on 7-10-2003.

(2) That Mr. Yahya Bakhtair complainant died on 27th June, 2003 at Quetta, who was complainant in this case.

(3) That on the last date of hearing i.e. 19-8-2003, some of the accused persons were not present and they submitted an application for acquittal of the accused persons; but on detailed arguments this honourable Court was pleased to direct that the case is not liable to be dismissed ipso facto and the names of the complainant be given.

(4) That on account of the directions of this honourable Court the names of two daughters of late Yahya Bakhtiar, namely Zeba Bakhtiar and Sara Bakhtiar are given. Any of them on each date shall appear before this Honourable Court, hence this application.

It is accordingly respectfully prayed that the names of Zeba

Bakhtiar and Sara Bakhtiar may kindly be kept on record, of this honourable Court for prosecution and further progress of the case in the interest of justice."

25. From the foregoing analysis of the nature of imputation, the complaint, statement of the complainant and averments made in the application filed by the respondent's daughters, it is manifest that the libel published was against the person of the complainant and the complaint filed by him could not have survived his death. Issues No.(ii) and (iii) are decided accordingly.

26. In view of what has been discussed above and our finding on issues Nos.2 and 3, both these appeals are allowed, the impugned judgment dated 8-9-1997 passed by the learned High Court is set aside and the complaints, subject-matter of both these appeals pending in the trial Court, are declared to have abated.

M.H./M-16/S Appeals allowed.

easylaw Case No.

1115258

Download Case